

**IN THE CIRCUIT COURT OF THE THIRTEENTH JUDICIAL CIRCUIT
IN AND FOR HILLSBOROUGH COUNTY, FLORIDA
CIVIL DIVISION**

**CHRISTOPHER HANSON, individually and
as attorney for himself and attorney/next
friend for his minor children,**

Plaintiff/Petitioner,

v.

Case No.: 25-CA-010255

Division: B

**THIRTEENTH JUDICIAL CIRCUIT COURT,
CHIEF JUDGE CHRISTOPHER C. SABELLA,
JUDGE KELLY AYERS, JUDGE MATTHEW
FELIX, COURT ADMINISTRATOR GINA
JUSTICE, MIKE MOORE, AND CLERK OF
COURT VICTOR CRIST,**

Defendants/Respondents.

**PLAINTIFF'S MOTION FOR SUMMARY FINAL ORDER
COMPELLING PRODUCTION OF PUBLIC RECORDS AND
ENTRY OF PEREMPTORY WRIT OF MANDAMUS
WITH INCORPORATED MEMORANDUM OF LAW**

Plaintiff, CHRISTOPHER HANSON, pursuant to Florida Rule of Civil Procedure 1.510 (as amended to conform to the federal *Celotex* standard), Florida Rule of Civil Procedure 1.630, Article I, Section 24 of the Florida Constitution, Chapter 119, Florida Statutes, and Florida Rule of General Practice and Judicial Administration 2.420, moves this Honorable Court for entry of a Summary Final Order and Peremptory Writ of Mandamus compelling Defendants to produce all requested public records within forty-eight (48) hours. In support thereof, Plaintiff states as follows:

I. PROCEDURAL POSTURE AND PRIMA FACIE STATUS

This case has reached a posture where summary disposition is not only appropriate—it is compelled by the constitutional mandate for expedited resolution of public records disputes. Two separate judges have independently found that Plaintiff established a prima facie case for mandamus relief. Two separate defense groups have now appeared and filed their respective responses. Collectively, their submissions fail, as a matter of law, to rebut the constitutional presumption of public access which the 13th Circuit Court actors continue to violate. Plaintiff does not relitigate in this Motion the due-process and briefing-schedule concerns arising from the prior sua sponte orders. Those concerns are preserved in Plaintiff's pending motions for rehearing on each of the relevant orders, which are incorporated here by reference and reserved for separate adjudication. This Motion addresses only whether, on the present record, Defendants have rebutted the prima facie case for mandamus relief for any of the public records sought.

The Defendants in this action divide into two distinct defense groups represented by separate counsel:

(a) The Judicial Defendants — the Thirteenth Judicial Circuit Court, Trial Court Administrator Gina Justice, Chief Judge Christopher C. Sabella, Judge Kelly Ayers, and Judge Matthew Felix — are represented by Senior Assistant Attorney General Jessica Schwieterman. The Judicial Defendants have filed three substantive responses: (i) Response in Opposition to the Amended Petition filed January 8, 2026 (Doc. 40); (ii) the contested January 28, 2026 filing (Doc. 55); and (iii) their operative Response to the Alternative Writ and Amended Petition, filed March 4, 2026 (Doc. 65), following Judge Coleman's February 17, 2026 Alternative Writ (Doc. 62). On April 1, 2026, the Judicial Defendants additionally filed a Motion for Protective Order to Stay Discovery (Doc. 72).

(b) The Clerk Defendant — Victor D. Crist, in his official capacity as Clerk of the Circuit Court for Hillsborough County — is separately represented by Jason L. Margolin and Keiana R. Wilkerson of Akerman LLP. The Clerk filed his Response to Alternative Writ and Amended Petition on February 23, 2026 (Doc. 63).

The four filings identified above, together with the Motion for Protective Order (Doc. 72), collectively represent the universe of defenses the Defendants have raised, for the 13th Circuit Court Defendants with respect to all of the materials sought. None of them—individually or collectively—creates a genuine dispute of material fact or establishes a legal basis for continued withholding of the requested records.

Under Florida Rule of Civil Procedure 1.630(e), a "[d]efendant must respond to the writ as provided in rule 1.140." Rule 1.140(a), in turn, affords a defendant 20 days to serve an answer "[u]nless a different time is prescribed in a statute of Florida." That qualifying clause is important here: §119.11(1), Florida Statutes, prescribes a different — and shorter — timeframe, commanding that "[w]henver an action is filed to enforce the provisions of this chapter, the court shall set an immediate hearing, giving the case priority over other pending cases." Read together, Rule 1.630(e), Rule 1.140(a), and §119.11(1) establish a 20-day response ceiling at most, with §119.11(1)'s "immediate hearing" mandate as the governing floor. Rule 1.090(b)(A) permits the court, for good cause, to extend a deadline "with or without motion or notice" provided the court acts before the original time expires; but the Rule requires an actual finding of good cause, and it does not authorize the wholesale vacatur of an existing alternative writ and the issuance of a new writ that effectively resets the response clock from scratch.

On January 13, 2026, Judge Frayman issued an Alternative Writ (Doc. 47), triggering the 20-day response period under Rule 1.630(e) and Rule 1.140(a). On February 17, 2026, Judge Coleman — over Plaintiff's objection, and without any finding of good cause for extending the original response deadline — vacated the Frayman writ entirely and issued a new Alternative Writ (Doc. 62), from which Defendants then had an additional 20-day response period running until March 4, 2026. The cumulative effect was to extend Defendants' response runway to approximately fifty days, in direct tension both with the single 20-day window provided by Rule 1.630(e)/1.140(a) and with the "immediate hearing" mandate of §119.11(1).

Plaintiff has preserved this objection throughout and does not relitigate it in this Motion although the additional time already granted Defendant is a factor in hearing the current motion on discovery and this one for summary final order. The latest Response to Plaintiff's petition for Writ was filed on March 4, 2026. (Doc. 65, Response to Amended Petition.) That response is now ripe for determination on the merits. As demonstrated below, it fails to carry Defendants' burden.

II. STATEMENT OF UNDISPUTED MATERIAL FACTS

The following facts are established by the record and are not genuinely disputed:

1. Between July 24, 2025, and October 14, 2025, Plaintiff submitted a series of formal public records requests to the Thirteenth Judicial Circuit, all addressed to "13th Judicial Circuit, Legal Department – Public Records, 800 E. Twiggs Street, Room 600, Tampa, FL 33602." The requests, attached to the initial Petition as Exhibits A–H (Doc. 6, beginning at page 1), sought the following categories of records:

- a. Email and text communications of Judge Kelly Ayers, her judicial assistant Dwauna Heyward, and all other Thirteenth Circuit representatives relating to the scheduling of or attendance at the December 13, 2024 hearing in Case No. 24-DR-001150 (Request dated July 24, 2025);
 - b. All visual and audio recordings of specified hearings in Case No. 24-DR-001150, **including the April 4, 2025 hearing** (Request dated July 24, 2025);
 - c. Email and text communications relating to the scheduling of or attendance at the January 9, 2025 hearing, including any communications concerning Attorney Scott Davis's non-attendance at that hearing (Request dated July 25, 2025);
 - d. Email and text communications of Judge Wendy J. DePaul and her judicial assistant relating to the April 28, 2025 Order of Recusal (Request dated August 14, 2025);
 - e. Additional records concerning the Guardian Ad Litem issue and Judge Ayers's request for a summary, and Husband's objection to excusing Attorney Davis from drafting the summary (Request dated September 4, 2025); and
 - f. Public Records Requests 6, 7, and 8, concerning specific communications regarding Judge Felix, Chief Judge Sabella, and Judge Ayers's disqualification records (submitted October 14, 2025). (Am. Pet. ¶14; Doc. 6, Exs. A–H at pp. 3–83.)
2. On August 21, 2025, the Thirteenth Judicial Circuit responded by making available approximately 226 double-sided pages/documents for a fee of \$0.15 per page. Defendants concede these pages consist of "emails from the dates December 3, 2024 to January 16, 2025." (Doc. 65, AG Response, §B.) The production did not include the requested video recordings, the recusal communications, nor the critical scheduling communications for the December 13, 2024 and January 9, 2025 hearings. Plaintiff paid the \$33.90 in copy fees, physically retrieved the double-sided paper copies from the Circuit Court, personally scanned each page to create an independent record, and then returned the paper copies to the custodian via pdf to contemporaneously memorialize the scanned record as the paper production from the Court.
3. The August 21, 2025 production was not a good-faith response; it was a calculated document dump and bait-and-switch, designed to distract from the intentional concealment of the actual records Plaintiff seeks. The Court specifically and without notice, withheld the records most relevant to Plaintiff's underlying constitutional grievance—the Circuit's handling of Plaintiff's unavailability for the December 13, 2024 hearing and of attorney Scott Davis's non-attendance at the January 9, 2025 hearing.
4. Plaintiff purchased a scanner for the specific purpose of handling the double-sided copies the Circuit produced, ultimately imaging **377 pages** of material—many of them duplicates. There is now a complete record of precisely what the Circuit actually produced and the glaring deficiencies that record reveals. There is a complete absence of any materials that would explain Judge Ayers's handling of Plaintiff's conflict with the December 13, 2024

hearing or her handling of Plaintiff's objection to Attorney Scott Davis's non-attendance at the January 9, 2025 hearing.

5. The Judicial Defendants were unquestionably aware of the relevance of those missing records: Judge Ayers was ultimately disqualified in the underlying family case, and her handling of the very hearings to which those records relate was central to the disqualification.
6. Plaintiff has continued in his efforts to escape the bias and misconduct that continues in the Family Law Case with oral arguments recently held on the constitutionality of the venue transfer denial in front of the Second District Court of Appeal on April 7, 2026. Judge Felix has refused to either transfer venue or make any findings of fact about the bias and misconduct/the basis for transfer requests.
7. Rather than produce the records, or even identify them on a privilege log as §119.07(1)(f), Florida Statutes, requires, Defendants chose instead to bury Plaintiff in 377 pages of unresponsive material and then characterize the production as complete. The failure to produce a privilege log, standing alone, constitutes a waiver of any claim of exemption and is independently sufficient to support the entry of a peremptory writ.
8. Defendants have not denied—in any of their four substantive filings (Docs. 40, 55, 63, 65) or in their April 1, 2026 Motion for Protective Order (Doc. 72)—the bait-and-switch and document-dumping tactics used to conceal the communications that would illuminate the constitutional defects in the Court's handling of the December 13, 2024 and January 9, 2025 hearings. Their silence in the face of a direct and repeated allegation is, under Florida's evidentiary rules, a tacit admission of that conduct. *See* §90.803(18)(b), Fla. Stat. (statement by party-opponent, adoptive admission by silence).
9. In Doc. 72, Defendants concede two facts that are dispositive of liability under Chapter 119. First, Defendants concede that responsive records exist and have not been produced to Plaintiff.
10. Second, Defendants offer as their sole justification the bare assertion that the unidentified records are "confidential" under unspecified provisions of "the Florida Statutes." (Doc. 72, Mot. for Protective Order, at 5.)
11. Defendants do not identify which records they are withholding, do not identify which statutory exemption they contend applies to any specific record, and have produced no privilege log. That combination — an admitted refusal to produce, coupled with a refusal to comply with the statutory procedure for asserting an exemption — is not a defense to Plaintiff's Chapter 119 claim.
12. It is a violation of it. Section 119.07(1)(f) provides that a custodian who contends that a record or part of a record is exempt "shall state in writing and with particularity the reasons for the conclusion that the record is exempt or confidential." § 119.07(1)(f), Fla. Stat. Defendants have not done so.
13. Their own filing establishes both the withholding and the procedural default.

14. On September 8, 2025, Defendants denied access to the April 4, 2025 video recording, citing Florida Rule of Judicial Administration 2.420(c)(8) and §119.071(3)(a), Florida Statutes, classifying it as confidential "surveillance video footage." (Am. Pet. ¶20; Doc. 65, AG Response, §D.)
15. Defendants have offered no sworn affidavit, no security protocol documentation, and no evidence of any kind substantiating that the April 4, 2025 hearing video is, in fact, a "security system plan" within the meaning of the statute. Plaintiff does not contest Defendants' representation that video from seven other requested hearings was overwritten under a 30-day retention cycle and no longer exists; the focus of Plaintiff's video request, and of this Motion, is the **April 4, 2025 hearing video**, which Defendants concede exists and have affirmatively withheld with no evidentiary support whatsoever.
16. During the April 4, 2025 hearing in Case No. 24-DR-001150, Judge Kelly Ayers stated on the record her ability and intent to obtain video of the proceedings. (Am. Pet. ¶20; Certification ¶e, referencing Exhibit E, pp. 17–18.) That statement is flatly inconsistent with the subsequent denial of access on purported security-exemption grounds.
17. Plaintiff submitted follow-up correspondence on August 26, August 31, September 9, September 12, September 24, and October 9, 2025, requesting clarification on search methods, statutory bases for withholdings, and affidavits confirming the completeness of the search. Defendants provided no substantive response to these follow-ups. (Am. Pet. ¶¶16–19.)
18. On October 14, 2025, Plaintiff submitted additional Public Records Requests 6, 7, and 8, seeking specific communications regarding Judge Felix, Chief Judge Sabella, and Judge Ayers's disqualification records. As of the filing of the Amended Petition on November 13, 2025, Defendants had provided only a form acknowledgment with no substantive response. (Am. Pet. ¶¶14–19.)
19. On December 17 and 18, 2025, Interim Court Administrator K. Angela Smith issued letters demanding "special service charges" totaling \$1,721.60 (\$512.19, \$973.39, and \$236.02) to review records that should be readily available under the public records law. (Pl. Init. Disclosures, Witness List, ¶5.)
20. In Defendants' Initial Disclosures filed March 10, 2026, Defendants identified only four witnesses—three judges and one court administrator—and listed only "Public Records that were previously provided to Plaintiff" (DIN 6) as their sole document production. (Doc. 70, Defendants' Initial Disclosures.)
21. Defendants provided **no privilege log**, no search methodology documentation, no affidavits regarding the completeness of their search, and no new responsive documents whatsoever.
22. On April 1, 2026, Defendants filed a Motion for Protective Order seeking to stay all discovery (Doc. 72), arguing that "discovery should be stayed pending further ruling by the Court" and invoking judicial immunity to shield judges from deposition.
23. The motion is itself a full-throated invocation of Chapter 119 as applicable to these proceedings (Doc. 72 at 1), cite *O'Boyle v. Town of Gulf Stream*, 257 So. 3d 1036, 1040 (Fla.

- 4th DCA 2018), for the elements of "a cause of action under the state's Public Records Act codified in chapter 119, Florida Statutes" (Doc. 72 at 3).
24. All the materials requested are directly relevant to a live, pending family-court proceeding.
 25. The April 4, 2025 hearing was conducted before Judge Kelly Ayers on **Wife's Motion to Appoint Guardian Ad Litem**, originally filed in Case No. 24-DR-001150 on December 13, 2024.
 26. That same motion (the focus of the April 4, 2025 hearing, at Judge Ayers's insistence) remains pending today, and the Thirteenth Judicial Circuit has now set it for hearing again on **April 17, 2026, eight days from the filing of this Motion**.
 27. The video of the April 4, 2025 hearing is therefore not of historical interest only; it is contemporaneous evidence of proceedings on the very motion that will be heard again in eight days.
 28. Plaintiff has sought to obtain this critical evidence through these mandamus proceedings, through formal requests and motions in the original 13th Circuit family law matter, and through motions requesting the Second DCA supplement the appellate record with the video (as it's directly relevant to the precise issue on appeal – right to an impartial tribunal)
 29. To the undersigned's knowledge, no one has even viewed the video at issue for an assessment about security vs. public interest concerns.
 30. Judge Ayers bias and misconduct were at issue going back to December of 2024, the period during which the 13th Circuit is actively concealing records.
 31. Plaintiff had even filed the (first) formal motion to disqualify Judge Ayers months before this April 4, 2025 hearing.
 32. Public access to this April 4, 2025 video is even more critical based on Judge Ayers's bias and misconduct already squarely at issue in the proceedings at the time she incorporated the video into the record.
 33. The public interest in access—and Plaintiff's personal due-process interest in presenting the existing record of earlier proceedings on the same motion—are concrete, imminent, and substantial.

III. LEGAL STANDARD

34. Under the amended Rule 1.510, Florida has adopted the federal summary judgment standard established in *Celotex Corp. v. Catrett*, 477 U.S. 317 (1986). Summary judgment is proper when "there is no genuine dispute as to any material fact and the movant is entitled to judgment as a matter of law." *In re Amendments to Fla. R. Civ. P. 1.510*, 317 So. 3d 72 (Fla. 2021).

35. In a mandamus action under Rule 1.630, when the petition is facially sufficient and the respondent has been ordered to show cause, the court must assess whether the response raises a genuine factual dispute warranting an evidentiary hearing. If the response fails to rebut the prima facie case, the court should enter a peremptory writ. *Radford v. Brock*, 914 So. 2d 1066, 1067–68 (Fla. 2d DCA 2005).

36. In public records cases, the presumption favors access. Article I, Section 24 of the Florida Constitution provides that "[e]very person has the right to inspect or copy any public record."

37. The custodian bears the burden of establishing the applicability of any exemption. *Woolling v. Lamar*, 764 So. 2d 765, 767 (Fla. 5th DCA 2000), "The burden is on the party claiming the exemption to demonstrate that the claimed exemption applies."); This burden is reinforced by the text of §119.07(1)(f), Florida Statutes, which requires the custodian to "state in writing and with particularity the reasons for the conclusion that the record is exempt or confidential."

38. Where a custodian withholds records in whole or in part on the basis of a claimed exemption, §119.07(1)(f), Florida Statutes, requires the custodian to "state in writing and with particularity the reasons for the conclusion that the record is exempt or confidential."

39. The failure to do so—the absence of a written, particularized privilege log—operates as a waiver of the claimed exemption and is, standing alone, grounds to compel production.

40. Where only a portion of a record is exempt, §119.07(1)(d) independently requires the custodian to "delete or excise from the record only that portion" and to "produce for inspection or copying the remainder of the record."

41. Furthermore, Section 119.11(1), Florida Statutes, mandates that "[w]henever an action is filed to enforce the provisions of this chapter, the court shall set an immediate hearing, giving the case priority over other pending cases." This expedited mandate reflects the Legislature's recognition that delay itself defeats the constitutional right of access.

42. The circumstances of the present case provide an extreme case for ensuring that these issues are expedited for 2 reasons.

- a. The public records at issue involve direct evidence of judicial misconduct that's escaped accountability to date, while continuing to damage a citizen in litigation.
- b. The citizen requesting access to the public records at issue continues to suffer consequences from the misconduct while still under authority of the Defendant Circuit, including directly under a named Defendant as Judge in his family law case, while Defendants continue to conceal direct evidence of precisely this internal misconduct, with no basis under the facts or law.

IV. ARGUMENT

A. Defendants' Responses Fail to Rebut the Prima Facie Case as a Matter of Law

43. Two independent judges have found that Plaintiff established a prima facie case for mandamus relief. The burden then shifted to Defendants to "show cause" why a peremptory writ should not issue. Between them, the Judicial Defendants' three responses (Docs. 40, 55,

65) and Motion for Protective Order (Doc. 72), and the Clerk's separate Response (Doc. 63), raise the following defenses—each of which fails as a matter of law.

Judicial Immunity Does Not Shield Records from Public Access.

44. The Judicial Defendants' primary defense invokes judicial immunity, citing *Parrotino*, *Johnson v. Harris*, *Forrester v. White*, and *Kalmanson v. Lockett* for the proposition that judges "enjoy absolute immunity for acts performed in the course of their judicial capacities." They renew that defense in Doc. 72 with citations to *Limehouse v. Whittemore*, 773 So. 2d 86, 87 (Fla. 2d DCA 2000), and *DHSMV v. Marks*, 898 So. 2d 1063 (Fla. 5th DCA 2005). This argument fundamentally misapprehends the nature of this action while exposing Defendants desperation to conceal these public records.
45. Nowhere within the pleadings is there any claim for damages from any judge.
46. Plaintiff does not even challenge any judicial decision in these proceedings. Plaintiff seeks production of public records—a ministerial act that the custodian is directed by law to perform.
47. Judicial immunity is a damages defense; it is not a records defense. Every case cited by Defendants concerns immunity from liability or compulsory deposition, not immunity from the custodian's constitutional duty to produce. *See Town of Manalapan v. Rechler*, 674 So. 2d 789, 790 (Fla. 4th DCA 1996) (ministerial duty of production is enforceable by mandamus).
48. The Florida Supreme Court has long made clear that the Public Records Act is to be construed broadly in favor of access, and that local or institutional policies cannot be interposed to delay or defeat production of records that are not expressly exempt. *See Tribune Co. v. Cannella*, 458 So. 2d 1075 (Fla. 1984) (holding that a municipality could not unilaterally delay release of otherwise-public personnel records and that the Public Records Act preempts local rules creating delay mechanisms not provided by statute). To read an absolute judicial exception into Article I, Section 24 would create precisely the kind of unwritten delay and concealment mechanism the Florida Supreme Court rejected in *Cannella*, and would contradict the constitutional presumption of access that Article I, Section 24 establishes.
49. Defendants' citation to *DHSMV v. Marks* for the proposition that "mental impressions" are protected is inapposite. Plaintiff does not seek judicial mental impressions. Plaintiff seeks communications, scheduling records, video recordings, and administrative correspondence—none of which constitute the decisional thought process protected by any deliberative privilege.
50. Email scheduling exchanges between a judicial assistant and counsel are administrative records, not judicial deliberations.
51. The Court's embarrassment or concern over possibly even internally corrected activity is not relevant to Public access of these records.

Defendants Are Judicially Estopped from Disclaiming Chapter 119.

52. **The Judicial Defendants have expressly accepted their duties under Chapter 119 including** in their January 8, 2026 Response, they pleaded "pursuant to... Florida Statutes Chapter 119" and described the action as one "in compliance with Florida Statute 119." (Doc. 40 at 1–2.) They expressly cited and quoted §119.07(1)(a), (c), (4), and (e) as the governing provisions that define their own duties as custodians of records. (Doc. 40 at 6–7.)
53. Critically, they invoked **§119.07(1)(e), Florida Statutes**, for the duty that "[s]hould the custodian of records determine that a portion of the requested record is exempt from inspection and disclosure, the custodian must provide the grounds for the exemption and include the statutory cite for the exemption." (Doc. 40 at 7.) They then failed to discharge that duty. They renewed their reliance on Chapter 119 in their April 1, 2026 Motion for Protective Order, describing the case as one "in compliance with Florida Statute 119" (Doc. 72 at 1) and invoking *O'Boyle v. Town of Gulf Stream*, 257 So. 3d 1036, 1040 (Fla. 4th DCA 2018), and *Moeller v. Se. Florida Behavioral Health Network, Inc.*, 392 So. 3d 579, 586 (Fla. 4th DCA 2024), as the governing Chapter 119 authorities. (Doc. 72 at 3.)
54. A party cannot invoke a statute as its operative framework in repeated filings and then, at summary judgment, disclaim its applicability. That is the paradigm case for judicial estoppel.
55. **Second, the outcome does not change even if Chapter 119 and Rule 2.420 are treated as alternative regimes.** Rule 2.420 tracks Chapter 119's substantive production duties: the obligation to produce non-exempt records, the obligation to identify exemptions in writing, the obligation to redact and produce non-exempt portions of partially exempt records, and the obligation to respond in good faith.
56. Whichever regime governs, the Judicial Defendants' obligations were materially identical, and the conduct Plaintiff documents in this Motion breaches those obligations regardless of whether the source of the duty is Chapter 119 or Rule 2.420.
57. Plaintiff therefore seeks relief in the alternative: under Chapter 119 as Defendants themselves have repeatedly invoked it, and independently under Rule 2.420 to the extent the Court concludes that Rule governs.
58. The Clerk Defendant, by contrast, has affirmatively disclaimed Chapter 119 in his separate Response, relying on *Times Pub. Co.*, 645 So. 2d at 1005, for the proposition that "chapter 119 does not apply to the clerk" with respect to judicial records. (Doc. 63 at 7.) Each Defendant is bound by the position it has filed. The Judicial Defendants' own invocation of Chapter 119 cannot be rescued by the Clerk's contrary position, which concerns only the Clerk's duties.

The "Futility" Defense Fails Without Evidentiary Support.

59. The Judicial Defendants argue in both Doc. 40 (§C) and Doc. 65 (§C) that "[m]andamus will not lie to compel the performance of an act that is futile or impossible to perform" because the requested videos "do not exist" or "are not available." (*See* Doc. 40 at 7; Doc.

65, §C, citing *Miami-Dade Cnty. Democratic Party v. Miami-Dade Cnty. Canvassing Bd.*, 773 So. 2d 1179, 1180 (Fla. 3d DCA 2000).)

60. This defense fails for two independent reasons. First, the assertion that records "do not exist" is a bare allegation in a responsive pleading.
61. Defendants have filed no sworn affidavits, no system logs, no IT certifications, and no testimony from any records custodian confirming the non-existence of these recordings.
62. Under the *Celotex* standard, the party opposing summary judgment must "go beyond the pleadings" and present specific facts showing a genuine dispute. *Celotex Corp.*, 477 U.S. at 324. A conclusory assertion in a brief is not evidence.
63. Defendants concede the April 4, 2025 video exists and have affirmatively withheld it on asserted exemption grounds—not on futility grounds. The futility defense is therefore irrelevant as to the sole video at issue, and it cannot defeat the mandamus petition as to the numerous categories of emails, text communications, recusal records, and scheduling communications that remain unproduced.

The Security Exemption Cannot Be Sustained on This Record.

64. The Judicial Defendants assert, most clearly in Doc. 65 (§D), that the April 4, 2025 video is exempt from disclosure as "confidential surveillance video footage" under §119.071(3)(a), Florida Statutes. The exemption fails on this record for four independent reasons.

(a) Defendants have not met their burden of proof. The burden to establish an exemption falls on the party asserting it. *Woolling*, 764 So. 2d at 767. On the present record, Defendants have offered nothing more than a bare label. There is no affidavit from any security official. There is no documentation describing the camera, its placement, its security protocols, or what security system features (if any) are visible in the footage. There is no specific finding that disclosure of this video would "reveal a security system plan or portion thereof" within the meaning of §119.071(3)(a). A conclusory assertion in a response brief is not evidence, and on summary judgment the absence of evidence is dispositive against the party bearing the burden.

(b) Defendants failed to comply with §119.07(1)(f)'s written particularity requirement. When a custodian withholds a record as exempt, the statute requires the custodian to "state in writing and with particularity the reasons for the conclusion that the record is exempt or confidential." §119.07(1)(f), Fla. Stat. No such written particularized explanation was ever provided to Plaintiff with respect to the April 4, 2025 video. The failure to produce the statutorily required privilege log is itself a waiver of the exemption and is, independently, grounds to compel production. That failure was expressly renewed when Defendants filed their Initial Disclosures in this action on March 10, 2026 (Doc. 70) without any privilege log.

(c) The common-sense "revelation" theory is self-defeating. The §119.071(3)(a) exemption exists to protect **non-obvious** security information—the placement of concealed cameras, the blind spots in a surveillance network, the response protocols known only to security personnel. The claimed exemption cannot rationally extend to a recording of a public hearing held in a public courtroom. Any person who has set foot in a Florida courtroom knows that the bench, the well where parties and counsel sit, and the gallery are visible to cameras; that is obvious from the fixtures mounted in plain view. Releasing video of one hearing in one courtroom reveals nothing about camera placement, coverage angles, or security protocols that is not already apparent to any member of the public who walks into the building. Defendants' theory, taken to its conclusion, would exempt every recording from every courtroom camera anywhere in Florida, which is not the law.

(d) Defendants never attempted the statutorily required redact-and-produce alternative. Section 119.07(1)(d), Florida Statutes, provides that when part of a record is exempt, the custodian must "delete or excise from the record only that portion" and "produce for inspection or copying the remainder of the record." If Defendants had genuinely identified any specific portion of the April 4, 2025 video as revealing security-sensitive information, they were required to redact (blur, cut, or obscure) that specific portion and produce the rest. They did not. That is a separate statutory violation and further evidence that the exemption was invoked as a pretext for concealment rather than as a good-faith application of the statute.

65. **The balancing test tilts overwhelmingly toward disclosure.** Even assuming, *arguendo*, that a sliver of legitimate security interest exists, the public and private interests in disclosure vastly outweigh it.
66. The April 4, 2025 hearing is the only objective audiovisual record of a proceeding at which Plaintiff alleges his constitutional due-process rights were violated (as part of a conspiracy ongoing for 5 months at the time, now nearly a year and a half) involving Davis, Ayers, and Hodz.
67. Judge Ayers who had already denied Plaintiff's first motion to disqualify was clearly aware of the palpable concerns Plaintiff had about impartiality and active and intentional concealment of records.
68. Her misconduct involves open and obvious demonstrations of bias against a litigant accusing her of bias, lying about it, threatening getting the video, and then concealing it.
69. It's difficult to reconcile 13th Circuit Conduct with any sense of Justice necessary to carry out their function without some return to transparency and accountability.

70. The record is evidence of precisely the kind of judicial branch conduct the public records law was enacted to illuminate. And the video's evidentiary relevance is not hypothetical: **The Exact Motion to Appoint Guardian Ad Litem, which was heard by Judge Ayers on April 4, 2025, remains pending in Case No. 24-DR-001150 and is set for hearing again on April 17, 2026—eight days from the filing of this Motion.**
71. The April 4, 2025 video is contemporaneous evidence of earlier proceedings on the very motion that will be heard again in eight days.
72. A court conducting the balancing required by §119.071(3)(a) cannot reasonably weigh a hypothetical, unsupported security interest above a concrete, imminent, and statutorily protected public-access and due-process interest.
73. **The balancing falls especially hard in favor of public access when the 13th Circuit's concealment of the public records is directly obstructing access to justice within that same 13th Circuit that refuses to transfer the case despite the structural conflict.**
74. For all of these reasons, the security exemption does not justify Defendants' blanket refusal to produce the April 4, 2025 video. At minimum, the Court should order an in camera inspection of the recording to determine whether any portion arguably reveals security-sensitive information and whether redaction would permit production of the remainder.

The Imminent Public Interest: Electoral Transparency and Accountability – In light of Judge Ayers apparent pursuit of another term on the bench with an election later this year.

75. The constitutional mandate for transparency is at its absolute apex under these facts because Judge Ayers is an elected official, and the public has a fundamental right to evaluate her courtroom conduct.
76. The records being unlawfully concealed by the Defendants—specifically the April 4, 2025 video capturing her courtroom demeanor and her statements on the record, as well as the administrative communications evidencing the highly irregular scheduling of the December 13 and January 9 hearings—are objective evidence of a sitting judge's temperament, honesty, and impartiality.
77. When the 13th Circuit Administration actively shields a judge's on-the-record conduct from public view, the Defendants are not merely violating Chapter 119; they are operating an "immunity corridor" that actively subverts the democratic process.
78. Defendants cannot be permitted to weaponize a pretextual "security" exemption or use "concealment through volume" as a taxpayer-funded campaign shield to hide Judge Ayers's behavior from the electorate.
79. The citizens of Hillsborough County have a concrete, immediate interest in accessing these public records to make an informed determination about her fitness for judicial office, an interest that completely obliterates any hypothetical, unsubstantiated administrative excuse.

The "Records Were Provided" Argument Is Contradicted by the Record—and by Defendants' Own April 1, 2026 Filing.

80. The Judicial Defendants' final line of defense, asserted in both Doc. 40 (§§B, D) and Doc. 65 (§B), is that Plaintiff's "request for public records was satisfied" because 226 pages of documents were made available. (Doc. 40 at 5, 7; Doc. 65, §B.) That argument is refuted by the record—and now, decisively, by the Judicial Defendants' own verified filing in Doc. 72.
81. On April 1, 2026, the Judicial Defendants, through the Office of the Attorney General, filed a Motion for Protective Order that itself confirms the core facts underlying Plaintiff's Chapter 119 claim. In Doc. 72, Defendants acknowledge that the response to Plaintiff's public records request was not provided in the form Plaintiff sought and that a further category of responsive records has not been produced at all, offering as the sole justification the unparticularized assertion that such records "are confidential." (Doc. 72 at 5.)
82. Doc. 72 thus establishes three facts without Plaintiff needing to characterize it beyond its plain terms: (i) responsive records exist; (ii) a portion of those records was "received" by Plaintiff only in the form of the 226-page August 21, 2025 production; and (iii) a further category of responsive records was withheld on a bare, unparticularized claim of "confidentiality." Defendants do not identify any specific record being withheld. They do not identify any specific statutory exemption they contend applies to any specific record. And they have produced no privilege log.
83. That combination—an admitted withholding paired with a refusal to comply with the statutory procedure for asserting an exemption—is not a defense to Plaintiff's Chapter 119 claim; it is a violation of it. Section 119.07(1)(f) requires a custodian who contends that a record or any part of a record is exempt to "state in writing and with particularity the reasons for the conclusion that the record is exempt or confidential." § 119.07(1)(f), Fla. Stat. Defendants have not done so—not in response to Plaintiff's original requests, not in response to the Alternative Writ, and not in Doc. 72 itself. Defendants cannot invoke an exemption they have never properly asserted, and cannot resist the statutory remedy for withholding records they now concede they are withholding.
84. Plaintiff's requests were specific and categorical. They sought, among other things: (a) communications regarding the scheduling of the December 13, 2024 and January 9, 2025 hearings; (b) recusal and disqualification records; (c) video recordings of public hearings; (d) communications regarding Judge DePaul's recusal process; and (e) records responsive to Public Records Requests 6, 7, and 8 filed October 14, 2025. Defendants do not claim—and cannot claim—that the 226 pages of emails from December 3, 2024 to January 16, 2025 fully satisfy these requests.
85. Moreover, Defendants' own March 10, 2026 Initial Disclosures confirm the insufficiency of their production. Defendants listed only the previously produced documents (DIN 6) and identified no additional responsive records. (Doc. 70.) They provided no privilege log itemizing withheld records and the specific statutory basis for each withholding, as §119.07(1)(f), Florida Statutes, requires. They provided no affidavit describing search

methods or confirming completeness. They identified no new responsive documents despite Plaintiff's expanded requests.

The Absence of a Privilege Log Is an Independent, Dispositive Waiver.

86. Section 119.07(1)(f), Florida Statutes, is not advisory. It commands that where any portion of a record is withheld on exemption grounds, the custodian "must state in writing and with particularity the reasons for the conclusion that the record is exempt or confidential." The statutory text uses the imperative. It permits no free-form assertion of confidentiality by label alone. And it permits no silence at all.
87. Defendants have never produced a privilege log in this case.
88. Not in their original August 21, 2025 production.
89. Not in response to Plaintiff's several rounds of follow-up correspondence seeking compliance.
90. Not in their January 8, 2026 Response.
91. Not in Doc. 55.
92. Not in Doc. 65.
93. Not in their March 10, 2026 Initial Disclosures.
94. Not even in their April 1, 2026 Motion for Protective Order, in which Defendants simultaneously sought to stay discovery and conceded that responsive records exist and were not produced, without identifying any specific record, any specific statutory exemption, or any particularized basis for withholding. (Doc. 72 at 5.)
95. The absence of a particularized written privilege log is not a technical foot fault.
96. It is a waiver of any claim of exemption.
97. Without the privilege log, the Defendants have repeatedly failed to meet their burden of proving an exemption.
98. The Constitution and relevant rules require disclosure.
99. The damage from the intentional misconduct and concealment continues with Plaintiff trapped inside the same 13th Circuit that's biased against him, dishonest about it, and is continuing to commit bad faith discovery violations in concealing public records relevant to an ongoing dispute with the 13th Circuit.
100. The due process violations are stacked on one another, yet the 13th Circuit continues with concealment, unchecked absent an immediate writ.

Defendants' Silence on the Bait-and-Switch Allegation Is a Tacit Admission.

101. Plaintiff has alleged, repeatedly and specifically, that the August 21, 2025 production was a document-dumping and bait-and-switch operation designed to bury responsive records in 377 pages of unresponsive material. *See* Motion to Vacate (Doc. 49) ¶35.
102. Defendants have filed five substantive papers since that allegation first appeared (Docs. 40, 55, 63, 65, and 72). In none of those filings have Defendants denied the allegation.
103. Under Florida Statutes §90.803(18)(b), a statement offered against a party is admissible as a party admission when the party "manifested an adoption or belief in its truth."

104. Adoption may be shown by silence in circumstances where a denial would naturally be expected.
105. Here, where Plaintiff has alleged misconduct directly, and where Defendants have had five opportunities to deny it and have not, their silence is a series of adoptive admissions.
106. The facts of the case overwhelmingly support public access to all requested materials especially in consideration of the admissions to bad faith, unlawful efforts to conceal it.
107. The rule of law does not bend to the identity of the defendant.
108. Judicial officers, no less than any other public official, are bound to comply with the law and with the constitutional guarantee of access to public records. Art. I, § 24, Fla. Const.; Fla. Code of Jud. Conduct, Canon 2A ("A judge shall respect and comply with the law and shall act at all times in a manner that promotes public confidence in the integrity and impartiality of the judiciary."); Canon 1 ("A judge shall uphold and promote the independence, integrity, and impartiality of the judiciary.").
109. The Florida Supreme Court has long recognized that the public records law reaches the judicial branch in its administrative and custodial capacities. *Times Publ'g Co. v. Ake*, 660 So. 2d 255, 257 (Fla. 1995); *Tribune Co. v. Cannella*, 458 So. 2d 1075 (Fla. 1984). Enforcing Chapter 119 against Defendants — several of whom are themselves judicial officers — is not an affront to the judiciary; it is the judiciary holding itself to the same standard it applies to every other custodian in Florida.
110. The alternative — declining to enforce Rule 2.420 and Article I Section 24 of the Constitution because the custodians are members of the judicial branch — would create a categorical exception found nowhere in the statute, the Constitution, or the case law.
111. Such an exception would leave litigants without the remedy the Legislature expressly provided in § 119.11(1) and would signal that accountability under Florida's public records law depends on who the custodian is rather than on what the law requires.
112. The choice before the Court is therefore a narrow one. One path applies Chapter 119 as written — uniformly, and without regard to the custodian's office. The other carves out an unwritten exemption for judicial-branch custodians. Only the first path is consistent with Article I, § 24, with *Ake* and *Cannella*, and with the Canons that bind every Florida judge to respect and comply with the law.

The Records Concealed Correspond Precisely to Judge Ayers's Subsequent Disqualification—Evidence of Intentional Concealment.

113. The records Defendants concealed are not a random set of documents. They are precisely the records concerning Judge Ayers's handling of the December 13, 2024 conflict, Attorney Scott Davis's non-attendance at the January 9, 2025 hearing, and the Guardian Ad Litem issue where Judge Ayers remarkably tried to bulldoze through to an order at the April 4, 2025 hearing.
114. They are also precisely the records concerning the conduct that led, ultimately, to Judge Ayers's disqualification in the underlying family case.

115. The overlap is not coincidental. The Thirteenth Judicial Circuit was fully aware of the relevance of these records—its own presiding judge was disqualified over the very conduct they document.
116. Rather than produce the records (or identify them on a privilege log), Defendants buried Plaintiff in 377 pages of unresponsive material and then played some semantic games to suggest the production complete, while erecting unreasonable financial barriers to continue concealment of other records.
117. That pattern—selective concealment of records that bear on judicial conduct later found to warrant disqualification—is circumstantial evidence of consciousness of concealment.
118. It is relevant to the merits of the mandamus petition, because it demonstrates that Defendants' asserted grounds for withholding are pretextual.
119. It is independently relevant to Plaintiff's entitlement to attorney's fees under common law and/or §119.12 given the level of unreasonable obstruction and delay involved in the litigation.

The Clerk's "Wrong Party" Defense Does Not Defeat the Peremptory Writ as to the Judicial Defendants.

120. The Clerk of Court, separately represented, filed his own Response on February 23, 2026 (Doc. 63), taking the position that mandamus cannot lie against the Clerk because "the Clerk is not and has never been the custodian of the materials identified in the Amended Petition" and "the Clerk lacks possession, custody, and control over those records." (Doc. 63 at 2.)
121. Plaintiff is uncertain of the location and status of the records at issue, and the Clerk's office remains a defendant only to the extent that the Circuit Court may attempt to transfer records further delaying production.
122. The Clerk relies on Florida Rule of General Practice and Judicial Administration 2.420 and *Times Publishing Co. v. Clerk*, 645 So. 2d 1003 (Fla. 2d DCA 1994), for the proposition that judicial administrative records are governed by Rule 2.420 rather than Chapter 119 and that the custodian is the chief justice or chief judge, not the Clerk.
123. Critically, the Clerk's defense does not—and could not—assist the Judicial Defendants. To the contrary, the Clerk's Response expressly concedes that "the records at issue are within the custody and control of the Thirteenth Judicial Circuit and its officials, not the Clerk." (Doc. 63 at 6.)
124. The Clerk's own recitation of the record confirms that Plaintiff's correspondence was "each addressed to '13th Judicial Circuit, Legal Department – Public Records... Tampa, FL 33602,'" and that "all substantive responses to Plaintiff's requests came from judicial branch officials, not the Clerk." (Doc. 63 at 2–5.)
125. The Clerk thus functions as a hostile witness against the Judicial Defendants: his filing is an admission, by a sister-defendant, that the Judicial Defendants are the proper custodians and bear the ministerial duty to produce.
126. Plaintiff recognizes that the central battleground for production is the Judicial Defendants.

127. At minimum, the Clerk's Response underscores that the Court can and should enter a peremptory writ against the Judicial Defendants now, regardless of how the Court ultimately resolves the Clerk's separate position.

**B. The Structural Conflict Underscores the Need for
Immediate Summary Disposition**

128. The Thirteenth Judicial Circuit is simultaneously: (1) a party-defendant in this mandamus action, accused of unlawfully withholding public records; and (2) the adjudicator in the underlying family law case (24-DR-001150), where the very records being withheld would bear on judicial conduct that has already resulted in the disqualification of the presiding judge.

129. In fact, the critical evidence missing in the underlying case – video of the April 4th 2025 hearing- is a public record wrongfully withheld by the 13th Circuit.

130. It's centrally relevant to the current issue, the most concerning and aggressive form of retaliation from the defendant (assisted by Judge Ayers), the motion for a guardian ad litem for happy healthy children.

131. This dual role creates precisely the structural concern that Florida's public records guarantee was designed to address. The public records law exists to illuminate the conduct of public officials, particularly where that conduct is otherwise difficult to scrutinize.

132. When the entity withholding the records is also the entity whose conduct the records would illuminate, the presumption of access is at its most pressing in what the Constitution requires of state officials like the Defendants.

133. The procedural history of this case confirms the urgency. This action was filed on October 14, 2025—nearly six months ago. Another Judge was disqualified for bias against Plaintiff and his efforts for accountability.

134. The constitutional mandate for "immediate hearing" under §119.11(1) has been frustrated by repeated procedural delays.

135. Meanwhile, the underlying family case continues to proceed before the same circuit whose records are being withheld, and Wife's Motion to Appoint Guardian Ad Litem—the very motion heard on April 4, 2025 before Judge Ayers—is set for hearing again on April 17, 2026.

C. Defendants' April 1, 2026 Motion for Protective Order (Doc. 72)

Confirms That Summary Disposition Is Appropriate

136. Far from undermining Plaintiff's Motion, Defendants' own April 1, 2026 Motion for Protective Order confirms that summary disposition is appropriate and ripe.

137. Defendants argue in Doc. 72 that "discovery should not proceed until immunity and other dispositive issues have been resolved" (Doc. 72 at 3) and that "[m]andamus is designed to be decided on existing evidence" (Doc. 72 at 3).

138. Plaintiff agrees. The existing evidence—the four Defendant responses, the 226-page production, the complete absence of a privilege log at any stage, the Initial Disclosures that identified no new responsive records, and Defendants’ own concession in Doc. 72 that responsive records exist and were not produced while identifying no specific record, no specific exemption, and no particularized basis under § 119.07(1)(f)—is already legally sufficient for this Court to enter a peremptory writ.
139. The appropriate response to Doc. 72 is not a stay but an immediate hearing on this Motion, as §119.11(1), Florida Statutes, requires.
140. Defendants' argument that "Plaintiff seeks the same documents in discovery that are subject to the litigation" (Doc. 72 at 5) inadvertently reaffirms Plaintiff's arguments.
141. The documents "subject to the litigation" are the public records that Defendants are obligated to produce.
142. The entire purpose of this mandamus action is to compel the ministerial act of production.
143. Yet the attorney general’s office continues to ignore the law and constitution to fight against transparency, creating even more concerns that all of this is in the wake of SB 1652, providing Florida Judges with an unprecedented power to strike material that would otherwise remain part of the public record.

D. The Court Should Take Up This Motion at the April 13, 2026 Hearing as an Immediate Hearing Under §119.11(1).

144. Section 119.11(1), Florida Statutes, provides that “[w]henever an action is filed to enforce the provisions of this chapter, the court shall set an immediate hearing, giving the case priority over other pending cases.”
145. This Court has a hearing already set for April 13, 2026.
146. Plaintiff agrees - the legal issues are fully briefed; no further discovery is necessary for resolution of the Motion; and any further delay is inconsistent with the Legislature’s express command that public-records actions be given priority.
147. Defendants themselves concede in Doc. 72 that mandamus “is designed to be decided on existing evidence” (Doc. 72 at 3), and the existing evidence—including Defendants’ own concession in Doc. 72 that responsive records exist and were withheld without any specific statutory exemption, any particularized written basis under § 119.07(1)(f), or any privilege log (Doc. 72 at 3-5)—is legally sufficient to warrant entry of a peremptory writ.
148. Plaintiff respectfully requests that the Court grant this motion immediately given the record failure of Defendants to meet their burden to demonstrate an exemption and take up this Motion for Summary Final Order at the April 13, 2026 hearing, or in the alternative, set this Motion for an immediate hearing consistent with §119.11(1).
149. The delays are causing further damage to a family, disruption to due process rights, and deterioration in public trust of the judiciary.
150. Transparency and accountability are constitutional guarantees under these facts.

V. RELIEF REQUESTED

WHEREFORE, Plaintiff respectfully requests that this Court:

1. Enter a Summary Final Order finding that Defendants have failed to rebut the prima facie case for mandamus relief and have failed to demonstrate a legally sufficient basis for withholding the requested records;
2. Issue a Peremptory Writ of Mandamus commanding Defendants to produce all records identified in Part A of the Prayer for Relief in the Amended Petition/Complaint within forty-eight (48) hours of the Court's order, consistent with §119.11(1), Florida Statutes;
3. In the alternative, order an immediate *in camera* inspection of the April 4, 2025 video recording to determine whether the claimed security exemption under §119.071(3)(a), Florida Statutes, has been properly applied, and whether redaction of any legitimately security-sensitive portions would permit production of the remainder;
4. Order Defendants to produce a complete privilege log identifying every withheld record, the specific statutory exemption claimed for each, and a factual description sufficient for the Court to evaluate the claimed exemption, within fourteen (14) days, as required by §119.07(1)(f), Florida Statutes;
5. Order Defendants to file sworn affidavits from the records custodian(s) detailing: (a) the specific search terms, custodians, devices, and systems searched; (b) whether personal devices of judges and judicial assistants were searched; and (c) the basis for any assertion that responsive records do not exist;
6. Deny Defendants' Motion for Protective Order (Doc. 72) as inconsistent with the constitutional mandate for expedited resolution of public records disputes and mooted by entry of the peremptory writ requested herein;
7. Award Plaintiff entitlement to attorney's fees and costs under §119.12, Florida Statutes, Rule 2.420(l), and the Court's inherent equitable authority for bad-faith conduct, to be determined following resolution of the merits; and
8. Grant such other and further relief as this Court deems just and proper.

VERIFICATION

I, Christopher Hanson, both as plaintiff and plaintiff's attorney, and as an officer of the Court, declare under penalty of perjury that the above is true and correct to the best of my knowledge.

Certified and executed on April 9th, 2026

/s/ Christopher Hanson
CHRISTOPHER HANSON, ESQ.

Florida Bar No. 44094
Tel: 727-409-5738
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CERTIFICATE OF SERVICE

I HEREBY CERTIFY that a true and correct copy of the foregoing has been filed and served via the Florida Courts E-Filing Portal on this 9th day of April, 2026, to:

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